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PRINCIPLE OF SERVICE

Gretchen Dugan
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May 11, 2026

Via Email: james@capitolmedia.co

James Cannon
james@capitolmedia.co

Re: PRA Request received April 15, 2026 –Trinity County November 2025 California Special Election (including all ballots related to Proposition 50)

Dear Mr. Cannon:

This office represents the County of Trinity in the capacity of County Counsel. Please accept this as the County's response to the above-referenced Public Records Act request. Below is a summary of your outstanding requests and the County's response to each of those requests.

Request #2: For each rejected ballot, to the extent available and maintained in your records, the following information:

- The reason for rejection (e.g., missing signature, signature mismatch, late arrival, wrong precinct, no postmark, voter deceased, etc.)
- The registered political party affiliation of the voter associated with the rejected ballot
- The ballot type (vote-by-mail, provisional, in-person)
- The precinct or zip code associated with the ballot (no personally identifiable voter information is requested)

Response #2: The Public Records Act (PRA) provides the public with the right to prompt availability of existing public records, as well as inspection of public records. A public record is defined as "any writing containing information relating to the conduct of the public's business prepared, owned, used, or retained by any state or local agency regardless of physical form or characteristics." (Gov. Code § 7920.530.) A public agency is not required to create a public record that does not exist at the time of the request. (*Id.*; *Haynie v. Superior Court* (2001), 26 Cal.4th 1061, 1075.) Moreover, local agencies are not required to create new records to satisfy requests, nor are they required to provide narrative answers to a requester's questions. (*Sander v. Superior Court* (2018) 26 Cal.App.5th 651, 669.)

Despite a diligent search and reasonable inquiry, Trinity County did not identify any records in its possession, custody or control that were responsive to your request.

The County considers your request complete. If you have any questions or wish to discuss this matter further, please do not hesitate to contact our office.

Regards,
PRENTICE LONG, PC

Gretchen Dugan
Gretchen Dugan
Law Clerk

cc: Maddy Woodman, Trinity County Clerk/Recorder/Assessor/ROV